

Court No. - 32

Case :- WRIT - C No. - 41406 of 2018

Petitioner :- Ajay Singh And Another

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Deepak Kumar Yadav

Counsel for Respondent :- C.S.C.

Hon'ble Shashi Kant Gupta,J.

Hon'ble Mrs. Manju Rani Chauhan,J.

Learned counsel for the petitioners is permitted to implead Electrical Inspector as Respondent No. 4 in the array of parties during the course of the day.

This writ petition has been filed, inter alia, for the following relief;

"(a). Issue a writ, order or direction in the nature of Mandamus directing the respondents to provide compensation to the petitioners with regard to death of their family members in the incident of electricity short-circuit.

(b) Issue a writ, order or direction in the nature of Mandamus directing the respondents to decide and consider the representation dated 18.05.2018 of the petitioners with regard to providing compensation to the petitioners with regard to death of their family members in the incident of electricity short circuit.

Heard learned counsel for the petitioner, Sri Chandan Agarwal, learned counsel for the Electricity Department and perused the record.

According to petitioner, death of three persons have occurred due to electric short circuit and a representation in this regard was made before the electricity department but neither their representation has been decided nor any heed is being paid by the respondents for granting any compensation.

Learned counsel for the Electricity Department has stated that the petitioners have not yet approached the concerned authority/Respondent No. 4 under Section 161 of the Electricity Supply Code, 2005 to ventilate their grievances. According to him, after inquiry a report is to be submitted by the Respondent No. 4 before the Respondent No. 3, Executive Engineer.

Considering the facts and circumstances of the case and the

submission of the learned counsel for the parties, and without expressing any opinion on the merits of the case, the writ petition is **disposed of** with a direction to the petitioner to make a fresh representation before the Respondents No. 3 and 4/concerned authority ventilating their grievances within ten days from today along with a certified copy of this order enclosing therewith a copy of the writ petition and its Annexures. The Respondent No. 4/concerned authority shall submit his report as provided under Section 161 of the Electricity Supply Code, 2005 within 15 days. Thereafter, the Executive Engineer, Respondent No. 3 shall make all endeavour to consider and decide the same finally by a speaking order after giving opportunity of hearing to the petitioner in accordance with law expeditiously positively within 30 days from the date of receipt of the report from the Respondent No. 4.

In case, the aforesaid representation is made by the petitioner, it shall not be dismissed on the ground of delay.

Order Date :- 17.12.2018

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